

Rita vs Union Of India on 9 October, 2014

IN THE COURT OF SHRI SANDEEP GARG :
ADMINISTRATIVE CIVIL JUDGE- CUM- ADDITIONAL
RENT CONTROLLER (CENTRAL) : DELHI

Petition No. : 302/2008
Unique ID No : 02401C0541072008

In the matter of:-

1 Rita
W/o. Late Sh. Jairajan,
R/o. RZ-442, C-II,
Street no. 23, Sadh Nagar,
Palam Colony,
New Delhi-110045.

2 Baby Prerna (Minor)

3 Master Hardek (Minor)

Both 2 and 3 above petitioner/Plaintiff/Applicant
are represented through their natural Guardian,
Mother Rita, Petitioner no. 1 above.

....Petitioners.

Versus

1 Union of India,
Through Secretary, Ministry of Defence,
New Delhi.

Petition No. 302/2008

2/2

2 State of Delhi

3 C.G.O.
Air Force Station, Palam,
3 wing, Delhi Cantt,

4 A.O.C.
Air Force Station, Palam,
Delhi Cantt.

5 Anita
D/o. Sh. Ram Charan Dhiman,
R/o. C-II/253, Madangir,
New Delhi-110082.

.....Respondents.

Date of Institution : 15.04.2008
Date of order when reserved : 09.10.2014
Date of order when announced : 09.10.2014

J U D G M E N T :

1 The present succession petition has been filed by the Petitioner no. 1 namely Smt. Rita for herself and on behalf of co-petitioners namely Baby Prerna and Master Hardek, for the grant of Succession Certificate in their favour qua the debts and securities left by Sh. Jai Rajan, who expired on 12.07.2006.

2 After filing of this petition, notice of filing of this petition was given to the general public by way of publication in the newspaper 'The Statesman' dated 26.03.2012, but none has appeared from general public to oppose or contest the present petition. 3 Respondent no. 5 namely Anita had been filed objections claiming herself to be the wife of the deceased Rajan Panikar. It has been averred that petitioners are not entitled to grant the succession certificate qua the debts and securities of deceased as they do not have any relations with the deceased Rajan Panikar. She is only entitled to succeed, being legally wedded wife of the deceased. Her marriage with the deceased was solemnized on 09.11.1985 according to Hindu rites and customs. She has filed a petition Under Section 125 Cr.P.C. on 12.10.1987 for grant of maintenance by the deceased and petition was allowed against deceased Rajan Panikar whereby he was directed to pay Rs.500/-p.m. as maintenance. Deceased had filed a Criminal Revision Petition against the order granting maintenance, which was dismissed. The deceased had instituted a petition Under Section 13(I)

(i) of Hindu Marriage Act against her and the same was dismissed by ex-parte judgment passed by the then Addl. District Judge, Delhi. The deceased had filed an appeal against the order of dismissal before the Hon'ble Delhi High court. While the aforesaid appeal was pending, the deceased died. The employer of the deceased issued a letter to her for releasing the service dues of the deceased as she has been shown as legally wedded wife of the deceased in his service record. The petitioner no. 1 had filed a suit for mandatory injunction against her. In the plaint of the said suit, the petitioner no. 1 pleaded in the first paragraph itself that the marriage between petitioner no. 1 and Late Jairajan was solemnized according to Hindu rites and ceremonies on 02.01.1990 at Delhi. Neither the petitioner no. 1 is the wife of deceased, nor the petitioners no. 2 and 3 are his children. 4 Respondents no. 1,3 and 4 i.e. the departments had been filed objections wherein it is averred that Late Sh. Jai Rajan Panikar was appointed as civilian MTD w.e.f. 01.04.1982. He made nomination for terminal benefits in favour of his father Sh. V.N. Paniker (50% share) and mother Smt. Laxmi Devi (50% share). He changed his nomination for the first time on 27.02.1987 in favour of his wife Smt. Anita (100% share) superseding previous nomination. As per record of office, Late Jai Rajan had made his wife Smt. Anita as his nominee and he never informed the employer about his divorce with Smt. Anita and second marriage with Smt. Rita. Thereafter, on 28.04.1999 Late Jai Rajan submitted an application for issuing CGHS card for him and his wife. He gave his wife's name as Rita in his application and office issued him a CGHS card showing his wife as Rita without checking records of nomination. On 25.03.2003, Late Jai Rajan informed the office that he has been blessed with a daughter Prerana and a son Hardik and requested for including their names in his service documents after the lapse of a considerable period of 13 years and 4 years respectively after the birth of his children. The deceased failed to clarify the correct name of his wife and expired on 12.07.2006.

5 In order to substantiate her case, the petitioner herself deposed as PW□. She stated that her husband Jairajan Paniker was working with Indian Air Force and expired on 12.07.2006 at Delhi. Her marriage was solemnized on 02.01.1999 according to Hindu rites and customs with deceased Sh. Jai Rajan Paniker. She is the legally wedded wife of the deceased and two children namely Baby Prerna and Master Hardek were born out of her wedlock with the deceased. She and other two petitioners no. 2 and 3 are entitled for the service benefits i.e. Family pension, Gratuity, Commutation, Encashment of leave to be released by respondent no. 3. Ex. CW□/B is the affidavit dated 31.10.2005 which was executed by the deceased in which he had mentioned about his LRs. The copy of CGHS Card bearing no. 287975 dated 10.05.1999 is Ex. CW□/C; The copy of election I card of Late Sh. Jai Rajan is Ex. CW□/D; Ex. CW□/E is her election I card; Ex. CW□/F is the copy of Admission card of AISSE in respect of Baby Prerna (Petitioner no. 2); Ex. CW□/H is a letter issued by the employer of the deceased, addressed to her and informed that the name of Anita has been mentioned in the service record of the deceased; Ex. CW□/I is the copy of death certificate of the deceased. 6 In her cross examination, she has stated that she had purchased the non judicial paper. Her parents had expired during her childhood. She know the parents of Late deceased Rajan Panicker. She had filed an application for impleading her in writ petition no. 8241/2009. She does not know as to whether she had added name of her children in the said writ petition or not. However, she had filed separate application for release of pension in favour of her children as well. Her daughter was born at home whereas her son took birth at Hospital. At the time of birth of her daughter, her husband and some neighbours were present. There was an old midwife at the time of birth of her daughter. The CGHS card Ex. CW□/C was got prepared by her husband.

7 PW□ Sh. Ashok Kumar Yadav, Sergeant, Air Force Station, Palam, Delhi deposed and filed the Ex. CW□/C i.e. CGHS Card no. 287975 which has been issued by the Officer Incharge, Civil Admn. Air Force Station, Palam, Delhi Cantt, Delhi in the name of deceased Jai Rajan and his wife Rita. As per record, no other CGHS card has been issued relating to deceased Jai Rajan.

8 PW□ Sh. Naresh Kumar, UDC, Air Force Station, Palam, Delhi deposed that CGHS Card bearing no. 287975 has been issued by Civil Admn. Air Force Station, Palam, in the name of Jai Rajan Panicker, the copy of which is Ex. PW□/C. CGHS Card has been issued after due verification. The said CGHS card was wrongly issued to the petitioner Rita. Court observation is made to the effect that the name of wife of the deceased has been mentioned in his service record as Anita. He further deposed that Personal Occurrence Report was not made in the case of deceased Jai Rajan Panicker as he was a civilian employee. The birth certificate of Hardik (son of Jai Rajan Panicker) and mark sheet of Prerna (daughter of Jai Rajan Panicker) are in service record, the copies of which are Ex. PW□/1 and Ex. PW□/2. Except nomination form, there is no other document which was signed or filed in the name of Anita. There is no POR action regarding the marriage of deceased Jai Rajan Panicker with any one. If the concerned employee already married i.e. before marriage took place coming into the service, only nomination is sufficient. The deceased Jai Rajan Panicker, as per the service record, was single and the same can be revealed from the nomination form filled up by him wherein he has nominated his father as a next kin on 01.04.1982. Nothing has come from the cross examination of PW□.

9 PW□4 Sh. Baljeet Bhogal deposed that Sh. Jai Rajan Paniker was his friend. He got married with Smt. Rita Panikar on 02.01.1990 in a temple at Hanuman Mandir at Palam. Since, 1990 Rita Paniker stayed with Late sh. Jai Rajan Panikar and two children namely Prerna and Hardik were born on 17.10.1990 and 16.06.1999 respectively from the said wedlock. Jai Rajan Panikar had disclosed to her that he has got divorced from his first wife Anita. 10 During cross examination of PW□4, it is stated that he had friendship with Mr. Late Rajan Paniker sometime in the middle of 1986. He used to visit at the house of Late Rajan Panicker. Late Rajan Panicker had three brothers and one sisters besides parents. However, the father of Rajan Panicker was dead. He had not given any concrete facts regarding his divorce. He did not feel any necessity to verify the said fact from Late Rajan Panicker.

11 No evidence has been lead by the respondent Anita. 12 The court has heard submissions advanced by ld. counsel for the petitioners and ld. Counsel for the respondent no. 1,2 and 3 i.e. employer of the deceased and has perused the record. 13 Ld. counsel for the petitioners has argued that petitioner no. 1 Smt. Rita Panicker got married with deceased on 02.01.1999 as per Hindu rites and customs and out of this wedlock, two children namely Baby Prerna and Master Hardik were born. In support of her contention, she has proved Ex. CW□/B i.e. an affidavit executed by the deceased Jai Rajan with regard to his legal heirs. Ex. CW□/C i.e. the CGHS Card No. 287975 of deceased; Ex. CW□/E i.e. election I card of the petitioner; Ex. CW□/F is the copy of Admission card of AISSE of Baby Prerna; Ex. CW□/H i.e. a letter addressed to the petitioner issued by the employer of the deceased. Objector Anita has not lead any evidence in support of her contention. The deceased was divorcee. Reliance is placed upon judgments delivered by Hon'ble Supreme Court in the cases of Vidyadhari Vs. Sukhrana Bai 2008 SC 98; Rameshwari Devi Vs. State of Bihar and others AIR 2000 SC 735 and judgment delivered by Hon'ble High court in the case of Smt. Anita Vs. Union of India & Ors. W.P.(C) No. 8241/2009. 14 On the other hand, Ld. counsel for the respondent i.e. employer of the deceased has contended that the name of Anita has been shown as wife in the service record of deceased Jai Rajan. Ex. PW□3/R□5 i.e. nomination form clearly shows that objector Anita is the wife of the deceased Jai Rajan. Petitioner has failed to establish that she had got married with deceased Jai Rajan whereas perusal of the service record itself shows that deceased earlier got married with deceased Jai Rajan.

15 It is no longer res integra that succession petitions are to be decided summarily. Sec. 373 of the Indian Succession Act provides that a succession petition is to be decided in a summary manner and even if court cannot decide the right to the certificate without determining questions of law or fact which may seem to be too complicated and difficult for determination in a summary proceedings, the Court may nevertheless grant a certificate to a person if he appears to be the person having prima facie the best title thereto. Thus U/s. 373 of Indian Succession Act, only prima facie case is to be seen and other questions of law and fact which may be complicated are to be decided by a regular civil court.

In the case of Madhvi Amma Bhawani Amma and others, Appellants Vs. Kunjikutty Pillai Meenakshi Pillai and others, Respondents. AIR 2000 Supreme Court 2301=2000 AIR SCW 2432 it was held that "sub□sec. (3) of S. 373 of Succession Act which deals with procedure for grant of certificate reveals two things, first adjudication for grant of certificate is summary proceedings and

secondly if the question of law and fact are intricate or difficult, it could still grant the said certificate based on applicants prima facie title. In other words the grant of certificate under it is only a determination of prima facie title. This as a necessary corollary confirms that it is not a final decision between the parties. So, it cannot be construed that mere grant of such certificate or a decision in such proceeding would constitute to be decision on an issue finally decided between the parties. If that be so the principle of res judicata cannot be made applicable."

16 In the present petition, petitioner no.1 Rita Paniker and objector Anita are both claiming themselves to be the wife of the deceased. The petitioner claims that she is the legally wedded wife of the deceased Jai Rajan and petitioners No. 2 and 3 namely Baby Prerna and Master Hardek are born out of her wedlock with deceased Jai Rajan. She had proved election I card of her deceased husband Ex. CW□/D; her election I card Ex. CW□/E; Ex. CW□/F is the copy of Admission Card of AISSE of her daughter Baby Prerna (Petitioner no.

2).

17 Respondent Anita has not lead any evidence in support of her contention.

18 The version of the petitioner is that the deceased was a divorcee at the time of his marriage with her. In the nomination form dated 27.02.1987, Ex. PW□3/R□5, filled by the deceased in his own handwriting, name of objector Smt. Anita has been mentioned as his wife. No evidence has been adduced by the petitioner to establish that deceased was a divorcee. On the contrary, it has been established that the divorce petition was dismissed and during pendency of appeal, Jai Rajan Panicker died. Therefore, the marriage with respondent no. 5 Anita never got dissolved. The marriage of petitioner with the deceased is illegal, null and void. However, from Ex. PW□3/6, it is evident that petitioners no. 2 and 3 namely Baby Prerena and Master Hardik are the children of deceased Rajan Paniker. Therefore, the court holds that petitioner no. 1 is not entitled to any share in the debts and securities of the deceased. However, it is prima facie established that the objector Anita continued to be the legally wedded wife of the deceased. As per Section 16 of Hindu Marriage Act, 1955, children born out of null and void marriage are also entitled to share in the property of their parents.

19 There is no impediment for the grant of Succession Certificate in favour of respondent no. 5 Anita and petitioners no. 2 and 3 viz. Baby Prerna and Master Hardik qua the debts and securities of deceased namely Sh. Jai Rajan. Accordingly, a Succession Certificate be issued in favour of respondent no. 5 Anita and petitioners no. 2 and 3 viz. Baby Prerna and Master Hardik qua the debts and securities of deceased namely Sh. Jai Rajan to the extent of 1/3rd share each qua the service dues i.e. Death cum Retirement Gratuity, Insurance + CGEGIS Subscription, Leave Encashment, GPF, DLI and family pension, as per which the outstanding dues of the deceased with its employer was Rs.6,50,455/□ Succession Certificate be drawn on deposit of court fee of Rs.16,261/□and on furnishing an Indemnity Bond with one surety within 15 days.

As per record, petitioner no. 3 Master Hardik is still minor. Therefore, his respective 1/3rd share be kept in term deposit with any nationalized bank/Post office till he attains the age of majority.

File be consigned to Record Room.

Announced in the open court
on 09.10.2014

(SANDEEP GARG)
Administrative Civil Judge-Cum-
Additional Rent Controller (Central)
Delhi

09.10.2014

Present : Dr. Vijendra Mahandiyan, Ld. Counsel for petitioner with petitioner in person.

Sh. Sanjeev Yadav, Ld. Counsel for respondents no. 1,3 &

4. None for respondents no. 2 & 5.

Final arguments heard.

Vide separate judgment announced in the open court today, Succession Certificate is issued in favour of respondent no. 5 Anita and petitioners no. 2 and 3 viz. Baby Prerna and Master Hardik qua the debts and securities of deceased namely Sh. Jai Rajan. Accordingly, a Succession Certificate be issued in favour of respondent no. 5 Anita and petitioners no. 2 and 3 viz. Baby Prerna and Master Hardik qua the debts and securities of deceased namely Sh. Jai Rajan to the extent of 1/3rd share each qua the service dues i.e. Death cum Retirement Gratuity, Insurance + CGEGIS Subscription, Leave Encashment, GPF, DLI and family pension, as per which the outstanding dues of the deceased with its employer was Rs.6,50,455/- Succession Certificate be drawn on deposit of court fee of Rs.16,261/- and on furnishing an Indemnity Bond with one surety within 15 days.

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File be consigned to Record Room.

(Sandeep Garg) ACJ-Cum-ARC (Central)/Delhi 09.10.2014